

CRIMINAL SET-ASIDE

(ADULT CASES)



What is a Set-Aside?

A set-aside (also called expungement) means the court seals your criminal or contempt record. Once sealed, it will not show up in official court records. However, they may show up in certain federal background checks, and in rare cases the court can unseal them.

The information below is not legal advice. Please read ORS 137.225 and other relevant Oregon laws for the most recent and accurate information about sealing criminal records. Court staff are not allowed to give you legal advice, so please consult a lawyer if you need advice or legal representation.

The requirements to be eligible can be complicated. The information listed here are just the most basic eligibility requirements. Please be aware that there may be unique requirements and exceptions depending on your individual case.

Who can use this process?

You can ask the court to set aside your record if:

- You were arrested, charged, convicted of a violation or crime, found guilty except for insanity, found in contempt of court, or your case was dismissed or acquitted
- If you were a minor (under 18) at the time of the arrest or citation or were charged as a minor, use the juvenile expunction forms available here:
www.courts.oregon.gov/programs/jcip/ModelCourtForms/Pages/default.aspx

You may qualify for a set aside if you were convicted, and:

- You **finished your sentence**, including probation and paying restitution and fines
- You **haven't been convicted of another crime** during the required waiting period (except traffic violations or a single violation offense)
- You **don't have any open criminal charges or open abuse/person-related contempt proceedings such as violation of a restraining order**
- Your case is **not one of the exceptions listed in ORS 137.225. Convictions for Class A felonies, many sex crimes, several child abuse crimes, and many others are not eligible.** Please read ORS 137.225 for the full list. Other laws may apply to your case.
- Your case was **not for a traffic offense conviction**
- Your case was **not handled in federal, tribal, out-of-state court, or local court**

How long do I have to wait to file for a set aside?

It depends. If you were **convicted** of an offense, use the longest timeline for your situation:

Type of Case	Wait Time (since conviction or release from prison)	If New Offense Committed, the Wait Time Extends by:
Class B Felony	7 years	7 years
Class C Felony; Contempt for abuse/person crime	5 years	5 years
Class A Misdemeanor	3 years	3 years
Class B/C Misdemeanor; Violation; Contempt unrelated to abuse/person crime	1 year	1 year

If you were found **guilty except for insanity (GEI)**, different laws may apply. Refer to ORS 137.223 for the most recent and accurate information regarding GEI.

If your **probation was revoked**, you must wait **3 years** from the revocation date or follow the timelines above—whichever is longer

If you were arrested or cited for an offense but the prosecutor did not proceed to filing a case:

- You can file 60 days after the prosecutor says they won't file charges, or you can file any time after your case was dismissed or you were acquitted

Driving under the influence of intoxicants (DUII) cases are not eligible if charges were dismissed because you completed a diversion program

How do I file?

1. Get fingerprinted and:

- **Oregon State Police fingerprinting instructions available here:**
<https://www.oregon.gov/osp/programs/cjis/Pages/Criminal-Justice-Information-Services.aspx>
- Send your fingerprint card to the **Oregon State Police**.
- Pay the **Oregon State Police fee** if you are asking the court to seal a conviction.
- Fill out the **Oregon State Police Request for Set Aside form**.

- **Oregon State Police will send the results to the prosecuting attorney.**
 - 2. Fill out the Oregon Judicial Department's **Motion** to Set Aside and **Declaration** in Support.
 - 3. **Make 2 copies** of the Motion and Declaration:
 - One for your records
 - One to send to the **District Attorney (see step 4)**
 - 4. Mail a copy of motion and declaration to the **Prosecuting Attorney** in the county where charges were or could have been filed, or arrest occurred. Mailing address for Oregon District Attorneys:
<http://www.oregonda.org/copy-of-contact>
 - 5. **Fill out the certificate of mailing** at the bottom of the form
 - 6. **File your forms** in the **circuit court** where the case happened or would have happened. Information about how to file:
<http://www.courts.oregon.gov/courts/Pages/default.aspx>
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What happens next?

- The District Attorney typically has 120 days to object. If they object, the court will schedule a hearing. You may receive a hearing notice from the court.
- If the court grants your request:
 - Your record is sealed. ORS 137.255(4) states that “upon entry of the order, the conviction, arrest, citation, charge or other proceeding [ordered set aside by the court] shall be deemed not to have occurred, and [you] may answer accordingly any questions relating to its occurrence.”
 - You will receive a copy of the judicial document sealing your case.

Do you need a referral to legal advice or representation?

Contact the Oregon State Bar Lawyer Referral Service: www.oregonstatebar.org

Are you deployed or about to be deployed?

Contact the Oregon State Bar Military Assistance Panel for information about special rights and rules that may apply to you:
<https://www.osbar.org/docs/ris/militaryflier.pdf>

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF Multnomah

State of Oregon

Plaintiff

Case No: 19CR04170

(leave blank if no court case)

vs

**MOTION TO SET ASIDE AND SEAL
AND
DECLARATION OF ELIGIBILITY**

Jordan Avery Reyes

Defendant

DOB: 04/17/1991

No Filing Fee

SID# if known: OR00004170

Citing/arresting law enforcement agency: Portland Police Bureau

(Example: Salem Police Dept. or Coos County Sheriff)

Arrest Date: 02/14/2019

(If no arrest date, list date of citation, booking, or incident)

Fingerprint number (FPN #) if known: FPN00004170

ELIGIBILITY STATEMENT AND LEGAL BASIS

I am eligible and move for a set aside of my record because the following is true (**check one option only**):

Option 1: ☒ There was a court case, and **I was convicted on at least one charge** (or found guilty except for insanity (GEI) or in contempt of court), and:

☒ I believe all the charges in this case are eligible, and I am moving to set aside all charges, including charges which were dismissed or acquitted

or

☐ Not all the charges on this case are eligible. I am moving to set aside only the following charges:

Name of Charges	Count #

☐ I have additional charges to provide, and they are attached on a separate page

Option 2: ☐ There was a court case, and I am not moving to set aside any convictions. I am moving to set aside all eligible **dismissed or acquitted charges only**.

Option 3: ☐ I was **cited or arrested** and there was **no court case**. I am moving to set aside the citation or arrest records.

Name of Citation/Arrest Offenses
•
•
•

•
•

☐ I have additional offenses to provide, and they are attached on a separate page

DECLARATION OF ELIGIBILITY

These 4 statements must be true to be eligible. Check all that apply:

- ☒ I have waited the required period under law to file this *Motion*
☒ I believe I am legally eligible for a set aside
☐ I have filed fingerprints with the Oregon State Police
☒ I will serve a copy of this *Motion* on the prosecuting attorney

And

*If you selected **Option 1** above, all of the following must also be true. Check all that apply:*

- ☒ I am not currently charged with a crime or contempt of court related to abuse or a person crime
☐ I have paid the Oregon State Police background check fee
☒ I have fully complied and performed all terms of the sentence of the court

I hereby declare that the above statements are true to the best of my knowledge and belief. I understand they are made for use as evidence in court and I am subject to penalty for perjury.

_____ Date	_____ Signature
jordan.reyes@example.org Email	Jordan Avery Reyes Name (typed or printed)
42 Maple Street Address	Portland, OR 97205 City, State, ZIP
	Att. _____ Phone

Certificate of Mailing

I certify that on (date): _____ I placed a true and complete copy of this *Motion* in the United States mail to the prosecuting attorney at (address): _____

_____ Date	_____ Defendant (signature)
	Jordan Avery Reyes Defendant Name

Attachment to Motion and Declaration

Circuit Court of Oregon, Multnomah County

State of Oregon v. Jordan Avery Reyes

Case 19CR04170

This attachment supplies the full identifying facts and selected charge list referenced by Att. or See attachment on the official motion. It is part of the motion and must accompany every copy served or filed.

Full legal name: Jordan Avery Reyes. Date of birth: 04/17/1991.

Address: 42 Maple Street; Portland, OR 97205. Phone: 503-555-0142. Email: jordan.reyes@example.org.

SID: OR00004170. FPN: FPN00004170. Arrest agency: Portland Police Bureau. Arrest/citation date: 02/14/2019.

Relief election: all charges in this case. The motion proceeds under ORS 137.225(1)(a), Option 1.

SELECTED Count 1: Theft in the second degree; disposition: conviction.

The defendant adopts this attachment when signing the declaration on the official motion. Signature and execution date remain for the defendant. The certificate of mailing must describe an actual mailing; it is not pre-executed.

Proposed Order Setting Aside and Sealing

Circuit Court of Oregon, Multnomah County

State of Oregon v. Jordan Avery Reyes

Case 19CR04170

PROPOSED - submitted for the court to review. This document is not an entered order and makes no finding until the court adopts and signs it.

Upon consideration of the motion, declaration, records, any objection and any hearing, the Court finds that the requirements of ORS 137.225 for the relief specifically granted below are satisfied.

IT IS ORDERED that the following selected records in case 19CR04170 are set aside and sealed under ORS 137.225:

Count 1: Theft in the second degree; conviction.

The records concerning the matters ordered set aside shall be sealed as provided by ORS 137.225. The clerk shall distribute the entered order as required by law to the appropriate courts and public agencies, including Oregon State Police and the identified arresting agency.

This order does not adjudicate restoration of firearm rights or direct federal, tribal, out-of-state, or private entities to destroy records. Any relief is limited to the Oregon records specified above.

Date of entry: _____

Circuit Court Judge: _____



OREGON STATE POLICE

REQUEST FOR SET ASIDE CRIMINAL RECORD CHECK

(Effective 1/1/2022)

The following information is required to ensure timely completion of your criminal record check request for set aside purposes. Please ensure all information is accurate and the \$33.00 fee is included to avoid delays in processing.

NAME Jordan Avery Reyes
(First) (Middle) (Last)

DATE OF BIRTH 04/17/1991 PHONE NUMBER (503) 555-0142
MM/DD/YYYY

MAILING ADDRESS 42 Maple Street; Portland, OR 97205

OTHER NAMES YOU ARE KNOWN BY (Ex: Maiden Name, Name used at time of arrest):

1. NAME None
(First) (Middle) (Last)
2. NAME None
(First) (Middle) (Last)
3. NAME None
(First) (Middle) (Last)

CIRCUIT OR MUNICIPAL COURT IN WHICH YOU ARE SEEKING A SET ASIDE

(Example: Circuit Court for Wasco County, Municipal Court for City of Springfield)

- | | |
|--|-----------|
| 1. <u>Circuit Court for Multnomah County</u> | 6. _____ |
| 2. _____ | 7. _____ |
| 3. _____ | 8. _____ |
| 4. _____ | 9. _____ |
| 5. _____ | 10. _____ |

Does the motion to set aside include a conviction? YES ☒ NO ☐

THE FOLLOWING MUST BE INCLUDED WITH THIS FORM AND MAILED TO OREGON STATE POLICE:

- ☐ Fingerprint Card Form
- ☐ Fee for set aside of CONVICTION. Include check or money order in the amount of \$33.00, payable to Oregon State Police.

Please note that Oregon law requires the results of the background check be returned to the prosecuting attorney(s) for each county or municipality included within the set aside motion application. This form and the fingerprint card will not be returned to you. OSP will not be contacting you upon completion of the criminal record check.

SET ASIDE CRIMINAL RECORD CHECK SUBMISSIONS TO OSP UNDER ORS 137.225 / ORS 137.223

Effective January 1, 2022 (SB397)

The process to apply for the set aside of a criminal arrest or conviction by a court will change effective January 1, 2022, as a result of Senate Bill 397. The following outlines the steps necessary for submission of fingerprints to Oregon State Police under ORS 137.225 (2)(c) and ORS 137.223(3)(c) as amended by the Oregon Legislature.

1. FINGERPRINTS

- a. Obtain a properly rolled, complete set of your fingerprints using the FBI standard blue applicant fingerprint card (FD-258). An example of this fingerprint card can be viewed at:
<https://www.edo.cjis.gov/artifacts/standard-fingerprint-form-fd-258-1.pdf>
Please contact a local criminal justice agency or public fingerprinting service for information regarding availability and any fee that may apply for these services.
- b. The following are required fields and must be completed on the fingerprint card form in order to avoid rejection of your request.
 - Printed Name of person filing a motion
 - Signature (manual fingerprinting only) of person filing a motion
 - Fingerprinting Official signature and date
 - Date of Birth of person filing a motion
 - Reason Fingerprinted: (must include one of these applicable references)
 - o **APPLICATION FOR SET ASIDE ORS 137.225**
 - o **APPLICATION FOR SET ASIDE ORS 137.223**

2. SET ASIDE FORM/FEE

- a. Complete all information on the [OSP REQUEST FOR SET ASIDE FORM](#).
Please note that Oregon law requires the results of the background check be returned to the prosecuting attorney(s) for each county or municipality included within the set aside motion application.
- b. The fee for an Oregon fingerprint-based Criminal record check for motions to set aside convictions is \$33.00.

3. MAIL THE COMPLETED PACKET TO OSP

- a. The request must include all of the following items:
 - A completed fingerprint card as noted above.
 - Completed OSP Set Aside Request form
 - Check or money order in the amount of \$33.00, payable to Oregon State Police for motions to set aside convictions.
 - Mail the completed packet to:
Oregon State Police, CJIS – Unit 11
ATTN: SET ASIDE
P.O. Box 4395
Portland, OR 97208-4395

Filing and Agency Submission Instructions

Circuit Court of Oregon, Multnomah County

State of Oregon v. Jordan Avery Reyes

Case 19CR04170

1. Scope and records. This packet covers an adult Oregon circuit-court Option 1 motion under ORS 137.225(1)(a). Obtain and compare the complete OSP/LEDS history, judgment, sentence and payment records, and all charge dispositions. The court decides eligibility. Do not file with unresolved other convictions, same-episode convictions, pending charges, offense exclusions, probation revocation, GEI, immigration concerns or an objection without appropriate legal help.

The selected case is 19CR04170 in Circuit Court for Multnomah County. The requested counts are 1. Verify all names, dates, count numbers and dispositions. The all-charge election applies only if every charge in this case qualifies.

2. Waiting and completion. For the supported Class A misdemeanor conviction, review the three-year waiting period measured from conviction or release from imprisonment, whichever is later, and sentence completion. Other convictions, probation revocation, contempt categories and other offense classes require their own applicable rules; this sample does not decide those branches.

3. Fingerprints and OSP. Obtain a properly rolled FD-258 fingerprint card. Complete printed name, required signatures, date of birth and the reason APPLICATION FOR SET ASIDE ORS 137.225. Submit the completed OSP request and fingerprint card to Oregon State Police, CJIS - Unit 11, ATTN: SET ASIDE, P.O. Box 4395, Portland, OR 97208-4395. Keep proof of submission. OSP sends the results to the prosecutor; this does not replace filing the motion with the court.

4. Fees. The official motion states No Filing Fee. The held OSP form effective January 2022 prints a \$33 conviction record-check fee. Confirm the current OSP amount and accepted payment before submission; include the required check or money order payable to Oregon State Police. A court filing-fee waiver does not establish waiver of the separate OSP charge. Do not mark fee paid or fingerprint submitted until true.

5. Sign and serve. Read the motion, its attachment and every declaration. Fingerprints-filed and OSP-fee-paid boxes are deliberately unchecked until those acts occur. Sign and date the official declaration yourself only after every required statement is true. Make two copies of the motion, declaration and attachment: one for yourself and one to mail to the prosecuting attorney. Confirm that prosecutor's current address using the official county directory linked in the enclosed OJD instructions; supply the address on the mailing certificate. After actual mailing, complete its actual date, sign and date

Filing and Agency Submission Instructions

it. The printed defendant name is already supplied.

6. File in the circuit court where the case occurred. Submit the official motion and declaration, attachment, and proposed order in the format the clerk accepts. Confirm the court's filing method and any local requirements using the OJD court directory in the enclosed instructions. The OSP request and fingerprint card belong to the agency submission, not as substitutes for court pleadings. This review assembly groups both deliveries only for inspection; separate them before submission.

7. Objection and hearing. The enclosed official instructions describe a typical 120-day prosecutor objection period. Monitor court notices; if an objection or hearing arises, read it promptly and obtain help as needed. File and attend as the court directs. No proposed order is effective merely because it is included in this packet.

8. After an entered order. Obtain the signed order, confirm the clerk's distribution and check that the relevant court and Oregon agency records were updated. Keep your own copies securely. A set-aside does not guarantee removal from private databases or federal/out-of-state records and does not itself restore firearm rights.

Before filing: replace every synthetic fact with verified participant information; confirm current OSP fee, actual fingerprint submission and payment, the prosecutor address, every required declaration, actual signature/date and actual mailing. The OSP enclosure checkboxes must reflect items physically enclosed. Unknown agency completion and judicial signature/date are never generated.